SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 2/17/26   TIME: 9:00 A.M.   DEPT: G   CASE NO: FL 2001631

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER: CLERK: J. CHARIFA

PETITIONER: SOPHIE CLARK

and

RESPONDENT: BARTON CLARK

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD/SPOUSAL SUPPORT; ATTORNEY'S FEES; DISTRIBUTION OF FUNDS HELD IN TRUST

RULING

On October 23, 2025, Respondent Barton Clark ("Father") filed a request for order ("RFO") seeking modification in child and spousal support. Father also requests $15,000 which was held back from the sale of the marital home, $7,500 of which was released to his attorney's trust account and $7,500 of which was held in the Petitioner Sophie Clark ("Mother") attorney's trust account be released entirely to him. Father further requests sanctions in the amount of $10,000 pursuant to Family Code section 271.

On February 6, 2026, the parties reached a stipulation regarding the support and the $15,000 held back from sale of the martial home.

Father's request for support and for release of the $15,000 is denied as moot, since the parties have reached a stipulation. The stipulation did not address the request for sanctions.

SANCTIONS

Family Code §271(a) authorizes the trial court to award attorney's fees and costs.

> Notwithstanding any other provision of this code, the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation between the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction. In making an award pursuant to this section, the court shall take into consideration all evidence concerning the parties' incomes, assets, and liabilities. The court shall not impose a sanction pursuant to this section that imposes an unreasonable financial burden on the party against whom the sanction is imposed…

The purpose of the statute is "to promote settlement and to encourage cooperation which will reduce the cost of litigation." (*Parker v. Harbert* (2012) 212 Cal.App.4th 1172, 1176, quoting *In re Marriage of Petropoulos* (2001) 91 Cal.App.4th 161, 177.)

The Court finds the parties were initially negotiating to modify the terms of the judgment and had reached an agreement. Mother then reversed course, and repeatedly changed counsel, delaying and re-negotiating, and eventually collapsing the agreement. Father requests sanctions in the amount of $10,000. According to Father's counsel, she spent 4.95 hours on the issues currently before the Court in the RFO. Another approximately 5 hours were spent in negotiations with successive counsel, and another 8.45 hours were spent on the RFO. Father's counsel charges him a reduced hourly rate of $425. Father also spent $2,500 on a vocational expert.

Mother's continual delays are precisely the kind of conduct section 271 seeks to preclude. The Court awards Father sanctions of $8,500, payable in full in 90 days.

Counsel for Father is to prepare the formal findings and order after hearing.

The parties shall comply with Marin County Superior Court Local Rules 7.12(B) and (C). Any party requesting oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person. Absent proper notice, no oral argument will be permitted, and if no request is made, the tentative ruling shall become the order of the Court.

Appearances may be made in person or via Zoom unless otherwise ordered. Parties are responsible for ensuring adequate connectivity and availability; the Court may proceed in a party's absence if technical issues arise. Parties requesting oral argument must appear in person or remotely by Zoom (video or telephone) in accordance with court website guidelines. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 2/17/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0001040

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER: CLERK: JENNIFER CHARIFA

PETITIONER: MIKI SUZUKI

and

RESPONDENT: JUNJI SUZUKI

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER – BIFURCATION RE DATE OF SEPARATION 2) CASE PROGRESS CONFERENCE

RULING

On January 2, 2026, Petitioner Miki Suzuki (Mother) filed her Request for Order (RFO), seeking a separate trial on date of separation, and characterization of certain assets as community property (CP).

Mother requests to bifurcate the date of separation. Father agrees to bifurcate the date of separation.

Mother also seeks an order characterizing certain assets as CP. Further, Mother seeks an order for Respondent Junji Suzuki (Father) to advance $100,000 of that CP to her. Mother asserts that she needs access to funds to repay a loan to her parents and to relocate to Japan with the parties' two daughters. Father objects to both characterizing assets in advance of trial and to advancing the funds and argues Mother has not presented any immediate need.

The request to bifurcate the date of separation is granted. A case progress conference is also set for February 17, 2026, and the Court will set trial dates and a briefing schedule then.

As for Mother's request to characterize certain property as CP, the request is denied. Characterization and division of property are trial issues.

As to the request to advance CP, the Court agrees with Father that Mother has not demonstrated a specific need for the requested $100,000. Mother's potential move to Japan is not yet before the Court. Father also points out that liquidation of the proposed funds would result in significant costs that would impose irreparable harm to the marital estate. The request is denied without prejudice.

Counsel for Mother is to prepare the formal findings and order after hearing.